

25STCV29233 25STCV29233

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-07-14

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Case Number: 25STCV29233 Hearing Date: July 14, 2026 Dept: 514

Vandenbroeder v.

Village Gardens Limited

25STCV29233

Petitions for Approval of Minor's Compromises for Claimants Avery Alarcon (Age 10), Payton Alarcon (Age 14), and Mark Alarcon (Age 16)

Tentative Ruling

The Court excuses the personal appearance of the Claimants. Counsel and Guardian Ad Litem may appear by telephone or video conference call.

On June 18, 2026, Petitioner Daisy

Vandenbroeder filed these three petitions for approval of minor's compromises for Claimants Avery Alarcon, Payton Alarcon, and Mark Alarcon.

The petitions are denied without prejudice based on the following issues with the petitions.

First, each petition must include all required attachments and declarations.

Filing a single declaration of counsel and referencing that declaration is not sufficient.

Second, on Item 11b(5) of each

Petition, Petitioner groups the three minor Claimants for the distribution of funds; this is not proper. Petitioner must identify in Item 11b(5) the amount that is proposed to be paid to each individual.

Third, no Attachment 11b(5) is provided. This is a critical document when there are multiple individuals, including not only the minor Claimants but also Petitioner, that are to receive funds under the terms of the settlement. The Court cannot approve the settlement with this attachment, which must set forth the factual and legal bases for the apportionment of the settlement payments.

Fourth, Attachment 18b(5) is not complete. Probate Code section 3401 applies only if both of the following two requirements are met: "(1) The total estate of the minor, including the money and other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value; [and] (2) The parent to whom the money or other property is to be paid or delivered gives the person making the payment or delivery written assurance, verified by the oath of such parent, that the total estate of the minor, including the money or other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value." Petitioner has not provided a declaration as to the total estate of each Claimant.

The petitions are denied without prejudice. Moving party is ordered to give notice.